

HOUSE BILL NO. 627

INTRODUCED BY B. MERCER

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING PROCUREMENT REPORTING REQUIREMENTS;
AND-REQUIRING THE DEPARTMENT OF ADMINISTRATION TO PROVIDE CERTAIN REPORTS TO THE
LEGISLATIVE FINANCE COMMITTEE ON PROCUREMENT SOLICITATIONS, CONTRACTS, AND
CONTRACT MODIFICATIONS; AND PROVIDING EFFECTIVE DATES AND A TERMINATION DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Report to interim committee. (1) By March 1, June 1, September 1,
and December 1 of each year, the department shall provide a written report to the legislative finance committee
in accordance with 5-11-210 containing the information listed in subsection (2) THAT IS related to procurement
solicitations and contracts AND IS AVAILABLE TO THE DEPARTMENT IN THE DEPARTMENT'S INFORMATION TECHNOLOGY
RESOURCES.

(2) The report must include:

(a) for a procurement solicitation for a contract that the department anticipates will cost at least
~~\$250,000~~ \$200,000 over the life of the contract:

(i) the name of each purchasing agency issuing the solicitation;

(ii) what the purchasing agency intends to procure through the solicitation;

~~(iii) — the portion of the purchasing agency's appropriation that it intends to use to pay the vendor;~~

~~(iv)-(III)~~ the closing date of the solicitation; and

~~(v)-(IV)~~ any other information the department finds relevant to the proposal;

(b) for a contract executed with or without a solicitation that is expected to cost ~~\$250,000~~ \$200,000
or more over the life of the contract:

(i) the names of the purchasing agency; and

(ii) the contractor and the date of execution; and

(c) for a contract modification that causes the total value of a contract to exceed ~~\$250,000~~

1 \$200,000 over the life of the contract:

2 (i) the names of the purchasing agency; and

3 (ii) the contractor and the date of execution.

4 (3) BY FEBRUARY 15, MAY 15, AUGUST 15, AND NOVEMBER 15 OF EACH YEAR, EACH GOVERNMENTAL

5 BODY SHALL SUBMIT THE INFORMATION LISTED IN SUBSECTION (2) RELATED TO PROCUREMENT SOLICITATIONS AND

6 CONTRACTS TO THE DEPARTMENT USING THE INFORMATION TECHNOLOGY RESOURCES SPECIFIED BY THE DEPARTMENT.

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8 **NEW SECTION. SECTION 2. REPORT TO INTERIM COMMITTEE.** (1) BY MARCH 1, JUNE 1, SEPTEMBER 1,

9 AND DECEMBER 1 OF EACH YEAR, THE DEPARTMENT SHALL PROVIDE A WRITTEN REPORT TO THE LEGISLATIVE FINANCE

10 COMMITTEE IN ACCORDANCE WITH 5-11-210 CONTAINING THE INFORMATION LISTED IN SUBSECTION (2) RELATED TO

11 PROCUREMENT SOLICITATIONS AND CONTRACTS.

12 (2) THE REPORT MUST INCLUDE:

13 (A) FOR A PROCUREMENT SOLICITATION FOR A CONTRACT THAT THE DEPARTMENT ANTICIPATES WILL COST

14 AT LEAST \$200,000 OVER THE LIFE OF THE CONTRACT:

15 (I) THE NAME OF EACH PURCHASING AGENCY ISSUING THE SOLICITATION;

16 (II) WHAT THE PURCHASING AGENCY INTENDS TO PROCURE THROUGH THE SOLICITATION;

17 (III) THE PORTION OF THE PURCHASING AGENCY'S APPROPRIATION THAT IT INTENDS TO USE TO PAY THE

18 VENDOR;

19 (IV) THE CLOSING DATE OF THE SOLICITATION; AND

20 (V) ANY OTHER INFORMATION THE DEPARTMENT FINDS RELEVANT TO THE PROPOSAL;

21 (B) FOR A CONTRACT EXECUTED WITH OR WITHOUT A SOLICITATION THAT IS EXPECTED TO COST \$200,000

22 OR MORE OVER THE LIFE OF THE CONTRACT:

23 (I) THE NAMES OF THE PURCHASING AGENCY; AND

24 (II) THE CONTRACTOR AND THE DATE OF EXECUTION; AND

25 (C) FOR A CONTRACT MODIFICATION THAT CAUSES THE TOTAL VALUE OF A CONTRACT TO EXCEED

26 \$200,000 OVER THE LIFE OF THE CONTRACT:

27 (I) THE NAMES OF THE PURCHASING AGENCY; AND

28 (II) THE CONTRACTOR AND THE DATE OF EXECUTION.

1 (3) BY FEBRUARY 15, MAY 15, AUGUST 15, AND NOVEMBER 15 OF EACH YEAR, EACH GOVERNMENTAL
2 BODY SHALL SUBMIT THE INFORMATION LISTED IN SUBSECTION (2) RELATED TO PROCUREMENT SOLICITATIONS AND
3 CONTRACTS TO THE DEPARTMENT USING THE INFORMATION TECHNOLOGY RESOURCES SPECIFIED BY THE DEPARTMENT.
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5 NEW SECTION. Section 3. Codification instruction. [~~Section 4~~ SECTIONS 1 AND 2] ~~is~~-ARE intended
6 to be codified as an integral part of Title 18, chapter 4, part 1, and the provisions of Title 18, chapter 4, part 1,
7 apply to [~~section 4~~ SECTIONS 1 AND 2].
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9 NEW SECTION. SECTION 4. EFFECTIVE DATES. (1) EXCEPT AS PROVIDED IN SUBSECTION (2), [THIS ACT] IS
10 EFFECTIVE JULY 1, 2025.

11 (2) [SECTION 2] IS EFFECTIVE JULY 1, 2026.
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13 NEW SECTION. SECTION 5. TERMINATION. [SECTION 1] TERMINATES JUNE 30, 2026.
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